SUBJECT: Rescission and Replacement of Election Resolutions for Proposed City Charter Amendments

SOURCE: City Manager's Office

COMMENT: On June 16, 2026, the City Council adopted Resolution No. 44-2026 submitting a proposed amendment to Section 61 of the City Charter relating to Local Control of Public Works and Procurement Authority and Resolution No. 45-2026 submitting a proposed amendment to Section 16 of the City Charter relating to Vacancies in Office for placement on the November 3, 2026 General Municipal Election ballot.

Following transmittal of the adopted resolutions to the Tulare County Registrar of Voters, staff was advised that additional election-related information is required to process the proposed Charter amendments for the November 3, 2026 General Municipal Election. Specifically, the resolutions must include the complete voter information guide text, designate the official newspaper for publication of election notices, and specify the passage requirement applicable to each measure. These additions are procedural in nature and do not modify the substance of the proposed Charter amendments previously approved by the City Council.

The attached replacement resolutions rescind and replace Resolution Nos. 44-2026 and 45-2026 in their entirety. The revised resolutions incorporate the additional election requirements requested by the Tulare County Registrar of Voters while preserving the ballot questions and Charter amendment language previously approved by the City Council. The replacement resolutions also include the full text of the proposed Charter amendments for inclusion in the voter information guide, designate the Porterville Recorder as the official newspaper for publication of election notices, and specify that each measure shall be approved by a majority of the votes cast.

The replacement resolutions do not alter the substance of the proposed Charter amendments previously approved by the City Council. Their purpose is solely to incorporate additional procedural election requirements identified by the Tulare County Registrar of Voters so the measures may be placed on the November 3, 2026 General Municipal Election ballot.

RECOMMENDATION: That the City Council:
1. Adopt the Resolution rescinding Resolution No. 44-2026 and approving a replacement Resolution submitting a proposed amendment to Section 61 of the City Charter relating to Local Control of Public Works and Procurement Authority to the voters at the November 3, 2026 General Municipal Election; and
2. Adopt the Resolution rescinding Resolution No. 45-2026 and approving a replacement Resolution submitting a proposed amendment to Section 16 of the City Charter relating to Vacancies in Office to the voters at the November 3, 2026 General Municipal Election.

ATTACHMENTS:
1. Draft Resolution - Local Control of Public Works and Procurement Authority
2. Draft Resolution - Vacancies in Office

Appropriated/Funded:

Review By:

Department Director:
Richard Tree, City Manager

Final Approver: Fernando Gabriel-Moraga, Chief Deputy City Clerk

RESOLUTION NO. _____-2026

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF PORTERVILLE RESCINDING AND REPLACING RESOLUTION NO. 45-2026, AND APPROVING AND CALLING FOR THE SUBMISSION TO THE VOTERS OF A CITY COUNCIL PROPOSED MEASURE TO AMEND CITY CHARTER SECTION 16 RELATING TO THE FILLING OF CITY COUNCIL VACANCIES AT A GENERAL MUNICIPAL ELECTION TO BE HELD IN THE CITY ON NOVEMBER 3, 2026

WHEREAS, the City Council desires to submit a proposed City Charter amendment to the voters at the General Municipal Election on November 3, 2026; and

WHEREAS, the City Council has determined that establishing a clear process for filling vacancies on the City Council promotes consistency, continuity of representation, and public understanding of the City's vacancy procedures; and

WHEREAS, the proposed charter amendment does not alter any procedural or substantive protection, right, benefit, or employment status of any local government employee or any retiree or of any local government employee organization; and

WHEREAS, the proposed charter amendment is an exercise of the City's constitutional home rule authority regarding matters of municipal affairs; and

WHEREAS, on June 16, 2026, the City Council adopted Resolution No. 45-2026 calling for the submission of the proposed City Charter amendment to the voters; and

WHEREAs, following submission of Resolution No. 45-2026 to the Tulare County Registrar of Voters, the Registrar determined that the resolution did not contain all information required to process the measure for the November 3, 2026 General Municipal Election; and

WHEREAS, in order to incorporate the required information and facilitate placement of the proposed measure on the ballot, the City Council desires to rescind Resolution No. 45-2026 and replace it in its entirety with this Resolution.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF PORTERVILLE AS FOLLOWS:

SECTION 1. Resolution No. 45-2026 is hereby rescinded in its entirety and replaced by this Resolution. This Resolution supersedes Resolution No. 45-2026 for all purposes relating to the submission of the proposed City Charter amendment to the voters at the November 3, 2026 General Municipal Election.

SECTION 2. That pursuant to requirements of the Charter of the City of Porterville and California Election Code, there is called and ordered to be held in the City of Porterville on Tuesday,

November 3, 2026, a General Municipal Election for the purpose of submitting a City Council charter amendment proposal to the voters for approval.

SECTION 3. That the City Council, pursuant to its right and authority under State Government Code section 34458, and Elections Code sections 1415 (a)(2) and 9255, does order submitted to the voters at the municipal election on November 3, 2026, the following proposed charter amendment:

CITY OF PORTERVILLE CHARTER AMENDMENT MEASURE_____-2026	
Shall the City Charter be amended to require that vacancies on the City Council be filled by appointment of the City Council when less than one year remains in the unexpired term, and by a special election when one year or more remains in the unexpired term?	**YES**
	NO

SECTION 4. The City Council approves and adopts the complete text of the proposed amendment of City Charter Section 16 as follows, with deletions of existing text shown in strike out and additions shown in underlining for convenient reference only:

Section 16. Vacancies In Office; When Offices Declared Vacant.

A vacancy in any legislative office, from whatever cause arising excluding any vacancy created due to a successful recall election, shall be filled by ~~appointment by the council, such appointee to hold office until the next general municipal election, when a successor shall be chosen by the electors for the unexpired term; provided, that if the council fails to agree or for any other reason does not fill such vacancy within thirty days after the same occurs, then such vacancy shall be filled by the mayor; provided, however, that if for any reason the seats of a majority of the council shall become vacant, then the city clerk shall call a special election at once to fill the vacancies for the unexpired terms, and the same shall be conducted substantially in the manner provided for general municipal elections~~ appointment of the City Council if less than one year remains in the unexpired term. If one year or more remains in the unexpired term, the vacancy shall be filled by a special election. Notwithstanding the foregoing, if for any reason the seats of a majority of the City Council become vacant, the City Clerk shall call a special election to fill the vacancies for the unexpired terms, and the election shall be conducted substantially in the manner provided for general municipal elections.

If, without permission from the city council, any legislative officer of the city shall remove from the city or absent himself/herself therefrom for more than forty-five (45) days consecutively, or shall fail to attend five (5) consecutive regular city council meetings unless prevented from attending by sickness (but in no case for a period exceeding ninety (90) days), his/her office shall thereupon become vacant. If for said forty-five (45) day period any legislative officer shall willfully fail or refuse to perform the duties of his office, though able to do so, or shall fail to qualify, or shall resign, or be convicted of a felony or a crime of

moral turpitude, or be adjudged mentally incompetent, his/her office shall thereupon become vacant.

SECTION 5. Passage of this measure requires a regular majority of votes.

SECTION 6. The Tulare County Clerk/Registrar of Voters shall give the appropriate notices for the election in the Porterville Recorder and shall conduct the election pursuant to provisions of state law.**SECTION 7.** The City Council directs the City Clerk to transmit a copy of the proposed charter amendment to the City Attorney. The City Attorney is directed to prepare an impartial analysis of the proposal, not to exceed 500 words in length, showing the effect of the proposal on existing law and the operation of the proposal. The City Attorney is further directed to transmit the impartial analysis to the City Clerk within ten days of adoption of this Resolution.

SECTION 8. The Tulare County Registrar of Voters is hereby requested to reprint the full text of the proposed City Charter amendment, substantially in the form attached hereto as Exhibit A, in the voter information pamphlet to be distributed to voters for the November 3, 2026 General Municipal Election.

SECTION 9. Pursuant to Elections Code section 9282, the City Council authorizes the Mayor, or the Mayor's designee, to file a written argument on behalf of the City Council regarding the measure, accompanied by up to four additional printed names and signatures of persons joining in the submission.

SECTION 10. Pursuant to Elections Code sections 9285 and 9287, the City Clerk, or County elections official as provided through the consolidated election process, is authorized and directed to perform all duties required by law relating to the receipt, selection, exchange, filing, and printing of ballot arguments and rebuttal arguments for the measure.

The City Clerk or County elections official shall send a copy of the argument in favor of the measure to the authors of any argument against the measure and a copy of an argument against the measure to the authors of any argument in favor of the measure immediately upon receipt of the arguments.

The author or a majority of the authors of an argument relating to the measure may prepare and submit a rebuttal argument or may authorize in writing any other person or persons to prepare, submit, or sign the rebuttal argument.

The rebuttal argument shall not exceed 250 words. A rebuttal argument may not be signed by more than five persons. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

SECTION 11. That the City Clerk, or County elections official is authorized, instructed, and directed to procure and furnish any and all official ballots, notices, printed matter, and all

supplies, equipment, and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

SECTION 12. Notice of the time and place of holding the election is hereby given and the City Clerk is authorized, instructed, and directed to give further or additional notice of the election in time, form and manner as required by law.

SECTION 13. Pursuant to Elections Code sections 10401 and 10403, the Board of Supervisors of the County of Tulare is hereby requested to consent and agree to the consolidation of the General Municipal Election to be held on Tuesday, November 3, 2026, for the submission of the measure.

SECTION 14. The County Elections Division is hereby authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 15. The Board of Supervisors of the County of Tulare is hereby requested to issue instructions to the County Elections Division to take any and all steps necessary for the holding of the consolidated election.

SECTION 16. The City Council of the City of Porterville recognizes that additional costs will be incurred by the County of Tulare by reason of this consolidation and hereby agrees to reimburse the County for these costs.

SECTION 17. The City Clerk is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the County Elections Division of the County of Tulare.

PASSED, APPROVED, AND ADOPTED this 21st day of July, 2026.

_____
Greg Meister, Mayor

ATTEST:
Richard Tree, City Clerk

By: _____
Fernando Gabriel- Moraga, Chief Deputy City Clerk

EXHIBIT A

VOTER INFORMATION PAMPHLET BALLOT TEXT

Section 16. Vacancies In Office; When Offices Declared Vacant.

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If, without permission from the city council, any legislative officer of the city shall remove from the city or absent himself/herself therefrom for more than forty-five (45) days consecutively, or shall fail to attend five (5) consecutive regular city council meetings unless prevented from attending by sickness (but in no case for a period exceeding ninety (90) days), his/her office shall thereupon become vacant. If for said forty-five (45) day period any legislative officer shall willfully fail or refuse to perform the duties of his office, though able to do so, or shall fail to qualify, or shall resign, or be convicted of a felony or a crime of moral turpitude, or be adjudged mentally incompetent, his/her office shall thereupon become vacant.